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ANNEX

2012 GUIDELINES FOR THE DEVELOPMENT OF A REGIONAL RECEPTION FACILITIES PLAN

Objectives of the Guidelines

1 The Guidelines provide guidance for the development of a Regional Reception Facilities Plan (RRFP) to assist Member States in specific geographic regions of the world in the appropriate and effective implementation of regulation 38 of Annex I, regulation 18 of Annex II, regulation 12 of Annex IV, regulation 8 of Annex V and regulation 17 of Annex VI of MARPOL.

Application of the Guidelines

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the appropriate and effective implementation of regulation 38 of Annex I, regulation 18 of Annex II, regulation 12 of Annex IV, regulation 8 of Annex V and regulation 17 of Annex VI of MARPOL.

Application of the Guidelines

2 The Guidelines are provided to assist Governments to develop appropriate and effective regional port reception facilities' arrangements that meet the needs of international ships calling at ports and terminals within an identified geographical region. Detailed proposals for regional arrangements (RA) for port reception facilities should be submitted to the Marine Environment Protection Committee (MEPC) for consultation, in accordance with the Guidelines on the organization and method of work of the Maritime Safety Committee and the Marine Environment Protection Committee and their subsidiary bodies (MSC-MEPC.1/Circ.4, as amended) . Submissions should be co-sponsored by all Member States whose ports and terminals will participate in the proposed RRFP. Before finalizing and implementing the RRFP, the proposing Parties should take into account the comments received as a result of the Committee's review.

Definitions

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States whose ports and terminals will participate in the proposed RRFP. Before finalizing and implementing the RRFP, the proposing Parties should take into account the comments received as a result of the Committee's review.

Definitions

3.1 Regional Reception Facilities Plan (RRFP) a document developed in accordance with Part 1 of these Guidelines.

3.2 Regional Ships Waste Reception Centre (RSWRC) a port identified in the RRFP

where adequate port reception facilities for ship generated wastes and cargo residues regulated under MARPOL are available.

3.3 Period of review time in years after which an RRFP is to be reviewed, with a view to ensuring that the RA for port reception facilities in place under the RRFP continue to meet the needs of stakeholders and the objectives of MARPOL.

Part 1 Development of a Regional Reception Facilities Plan (RRFP)

4 Identification of the region to be covered by a RRFP For the purposes of an RRFP, a region should include the participating States and the ports that will be covered by the plan. A map should be provided, clearly showing the participating States and all ports

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RRFP, a region should include the participating States and the ports that will be covered by the plan. A map should be provided, clearly showing the participating States and all ports within the region. The majority of States participating in an RRFP should be Small Island Developing States (SIDS). Although non-SIDS may participate, they should do so only so far as their ports may be Regional Waste Reception Centres. The obligations of non-SIDS to provide adequate reception facilities in all ports and terminals will not be satisfied by RA.

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5 Identification of the nature of the unique circumstances that impact on the ability t o provide adequate port reception facilities A clear understanding of such unique circumstances will lead to a logical approach to designing RA that most efficiently address those circumstances. Generally, such circumstances will include practical difficulties on the

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circumstances will lead to a logical approach to designing RA that most efficiently address those circumstances. Generally, such circumstances will include practical difficulties on the part of a State to manage its own domestic waste, or a disproportionate additional burden from ships to the domestic waste stream. Distances between ports and suitable waste processing facilities may result in unacceptable costs for transport which may increase the risk of inappropriate treatment. A State's small geographical size may limit the space available to process or dispose of ship generated wastes and cargo residues, as may geomorphology (for example high water table or unstable lan d areas on low lying islands). A small population may limit the ability to provide staff to receive and process ship generated wastes and cargo residues at times convenient to ships. In addition to these examples, other unique circumstances may be present and should be fully described in the RRFP.

6 In demonstrating a compelling need for RA, alternatives should be explored, costed and assessed in terms of their environmental risk. For example, it may be relatively efficient

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6 In demonstrating a compelling need for RA, alternatives should be explored, costed and assessed in terms of their environmental risk. For example, it may be relatively efficient to receive ship generated wastes and cargo residues in every port, temporarily store it and transport it to a central treatment plant for processing, while being sure to comply with applicable international law on the transboundary movement of hazardous wastes. The cost of such storage, transport and central processing may be less than providing comprehensive processing of ship generated wastes and cargo residues in the vicinity of every port, and may be more easily funded and/or recovered from port users. However, in some regions, the cost of transport may still be prohibitive and the environmental risk associated with the transport of the ship generated wastes and cargo residues may be unacceptable.

7 Note that RA are not intended as a quick solution for short-term problems (e.g. where an individual port has a temporary inability to provide adequate port reception facilities due to equipment breakdown, industrial action, severe weather etc.). RA is intended

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(e.g. where an individual port has a temporary inability to provide adequate port reception facilities due to equipment breakdown, industrial action, severe weather etc.). RA is intended for ports where the practicality of providing port reception facilities is likely to be challenging for the foreseeable future. A clear understanding of the unique circumstances will also help to identify the areas or issues that may be able to be tackled in the long term to enhance the provision of port reception facilities throughout the region.

8 Context for RA within a broader approach to waste management and implementation of MARPOL RA should be designed to complement other strategies to improving management of ship generated wastes and cargo residues within a region. It should be clearly understood and documented how RA will contribute to efforts to improve the ability of a State to effectively fulfil its obligations under MARPOL, or to accede to MARPOL where a State is not already a Party. Parties proposing RA should ensure that such arrangements would be suited to the vessels calling at ports within the region and

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MARPOL where a State is not already a Party. Parties proposing RA should ensure that such arrangements would be suited to the vessels calling at ports within the region and would not encourage any illegal discharge into the sea.

9 International and domestic shipping and the needs of ships operating in the region to discharge ship generated wastes and cargo residues Understanding shipping patterns is important to assessing the demand for port reception facilities in a region and in individual ports. The ships calling at each port within a region should be quantified, as well as the existing number of requests for reception of various types of ship generated wastes and cargo residues. Advice on how to approach this task is given in several IMO documents and publications.1

1 Refer to resolution MEPC.83(44) on Guidelines for Ensuring the Adequacy of Port Reception Facilities; the Comprehensive Manual on Port Reception Facilities (IMO, 1999); and Circular MEPC.1/Circ.671, Guide to Good Practice for Port Reception Facility Providers and Users.

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10 The types of ships operating in a region should be carefully identified as certain ship types generate particular waste streams and/or are subject to specific ship generated wastes and cargo residues management requirements. For example:

- oil and chemical tankers cargo slops from tankers can reach large volumes with high water content compared to other types of ships' generated wastes which is generally more concentrated;
- oil tankers of less than 150 gross tonnage in most cases these ships are